

Court No. - 3

Case :- WRIT - C No. - 9275 of 2018

Petitioner :- Bindu Mehta

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Shyam Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Sri Mahboob Ahmad, learned counsel appearing for the respondents nos. 2 to 4 is not available today. On the request made on his behalf, put up on Tuesday, i.e., 27.03.2018 as fresh.

Order Date :- 21.3.2018

Ishan

Court No. - 3

Case :- WRIT - C No. - 9275 of 2018

Petitioner :- Bindu Mehta

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Shyam Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

On the request of learned counsel for the petitioner, put up day after tomorrow ie. 29th March 2018.

Order Date :- 27.3.2018

SKS

Court No. - 3

Case :- WRIT - C No. - 9275 of 2018

Petitioner :- Bindu Mehta

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Shyam Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

As no time left put up tomorrow i.e.30.03.2018.

Order Date :- 29.3.2018

piyush

Court No. - 3

Case :- WRIT - C No. - 9275 of 2018

Petitioner :- Bindu Mehta

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Shyam Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

The petitioner is having an Electric Connection No. 55765/3179. The meter of the said connection was replaced sometime in the year 2012, on the application of the petitioner as the meter was said to be defective.

The petitioner's allegations is that he had paid the electricity dues as per the Bills raised regularly till the month of June 2015. Thereafter, huge demand of the electricity dues was raised against the petitioner and the electric connection was disconnected.

The petitioner preferred Writ - C No. 51131 of 2017, the aforesaid writ petition was disposed of on 02.11.2017 with the direction to the petitioner to deposit a sum of Rs.50,000/- and to make an application for the correction of the Bill. The petitioner in pursuance of the above order deposited a sum of Rs.50,000/- and made an application dated 04.11.2017 for the rectification of the disputed amount of the Bill.

The respondents without passing any speaking order on the aforesaid application vide letter dated 22.02.2018 has submitted a Bill dated 18th February, 2018 for a sum of Rs.2,48,516/- for the month of February 2018 which includes the arrears but does not given any adjustment of Rs.50,000/- deposited by the petitioner pursuant to the direction of the Court.

The petitioner is aggrieved by the aforesaid Electricity Bill and the demand raised against him.

The submission of the learned counsel for the petitioner is that this Electricity Bill is also incorrect and excessive. It does not take into account, all the amounts which have been deposited by the petitioner.

We are conscious of the fact that in the event of dispute of the Electricity Bill, the petitioner has a remedy under Clause 6.5 of the Electricity Supply Code of 2005, but looking to the facts

and circumstances of the case, we propose to keep the matter pending and direct the respondents to come out with a complete statement of the account of the petitioner in respect to the above connection after giving adjustment to all the amounts which have been deposited by the petitioner.

The respondents are also directed to produce the order which may have been passed by the authority on the correction application of the petitioner dated 04.11.2017 on the basis of which the present demand has been raised or in the alternative the Executive Engineer may reconsider the matter and pass a speaking order as to the dispute raised by the petitioner as early as possible.

The above exercise may be completed by the respondents within a period of three weeks' and a counter affidavit be filed within a month annexing the documents as directed.

Until further order of this Court, no coercive step shall be taken against the petitioner for the realization of the dues as per the impugned Bill dated 18th February 2018 provided petitioner deposits the estimated current amount of Rs.12,000/- for the month of February. On the deposit of the said amount the electricity connection of the petitioner which is said to be disconnected on 08th March 2018 shall be restored immediately.

The petitioner will also continue to deposit the monthly bills as and when raised against him.

List after a month.

Order Date :- 30.3.2018

Ishan

Court No. - 40

Case :- WRIT - C No. - 9275 of 2018

Petitioner :- Bindu Mehta

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Shyam Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

As prayed, list in the next cause list.

Order Date :- 3.1.2023

S.K.